

PARTIES ARE ORDERED TO APPEAR to confirm whether Plaintiff gave Defendant notice of the hearing date as ordered.

2. The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$2,167.35, plus costs of \$367.90, for a total judgment of \$2,535.25.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L23-00312
CASE NAME: BANK OF AMERICA N.A. VS. PARDEEP SINGH
***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT**
FILED BY:
TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal and Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

The Court previously continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. Plaintiff was ordered to give notice of this continued hearing date on the pending motion. See Order entered November 10, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.

Counsel for Plaintiff appeared at the December 2nd hearing and acknowledged that no further notice had given of the new December 2nd hearing date and requested a further opportunity to give timely notice and have this matter heard. **The Court continued the matter again to December 30, 2025, 9:00 a.m. in Department 34. Plaintiff was ordered to give notice of the new hearing date to Defendant forthwith.** See Minute Order dated December 2, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. No amended notice of motion appears on the Court's docket.

Background

The parties entered into that certain settlement agreement filed on April 21, 2023 (the

“Settlement Agreement”), the terms of which included payment by the defendant Pardeep Singh (“Defendant”) in the amount of \$21,227.71, plus costs, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default (“Supporting Declaration”), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶5. Defendant failed to cure after notice. *Id.* at ¶6 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$14,102.71 due and owing, plus costs of \$518.50, for a total of \$14,621.21. See Supporting Declaration, ¶¶7-8.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

- 1. The Motion to Enter Stipulated Judgment after Default is DROPPED from calendar.**

3. 9:00 AM CASE NUMBER: L24-03014

CASE NAME: CAPITAL ONE, N.A. VS. KAREN JEFFERSON

***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PLN ON 9/9/25
FILED BY:**

TENTATIVE RULING:

Plaintiff Capital One, N.A. (“Plaintiff”) filed a Motion for Judgment on the Pleadings on September 9, 2025 (the “Motion for Judgment on the Pleadings”). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

The Court previously continued the matter to December 30, 2025, 9:00 a.m. in Department 34 of the Court, at the parties’ request in light of ongoing settlement discussions. All parties have actual notice of the continued hearing date.

The Court issues the following tentative ruling, as it does not appear that the matter was been withdrawn or any notice of settlement filed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Karen L Jefferson (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.